

Equivalent Citations
citation codes .

SANJIB BHUNIA v. POONAWALA FINCORP LTD

Debts Recovery Appellate Tribunal (Mar 1, 2023)

CASE NO.

MISC APPLICATION/82/2023

JUDGES

- HON'BLE Mr. Justice Brijesh Sethi

ATTORNEY

JUDGMENT

Brijesh Sethi, Chairperson: — This matter has been taken up by me through Video Conferencing on being mentioned by the learned counsel for the applicant on the ground that possession of the *property* in question is going to be taken over on 06.03.2023.

Misc. Application No. 82/2023

2. This application has been filed by the applicant seeking transfer of applicant's S.A. No. 94/2023 from learned DRT-II, Delhi to DRT-I, Delhi for hearing.

3. The learned counsel for the applicant states that the Receiver appointed by the learned CMM has issued notice for taking possession of the *property* in question on 06.03.2023. She further submits that the applicant has filed an S.A. (No. 94/2023) before the learned DRT-II, Delhi in respect of the *property* question. Learned counsel for the applicant states that since the learned DRT-II, Delhi has no regular Presiding Officer and its additional charge has been given to the learned Presiding Officer, DRT-III, Delhi. She states that the learned Presiding Officer DRT- III, Delhi is not taking up the matter. In these circumstances, the learned counsel states that the prayer in the application would stand satisfied if the learned Presiding Officer, DRT-III, Delhi, who is holding additional charge of DRT-II, Delhi is directed to take up the S.A. in question at the earliest and decide the same.

4. Heard. The learned Presiding Officer, DRT-III, Delhi, who is holding additional charge of learned DRT- II, Delhi, is requested to take up the applicant's S.A. No. 94/2023 on 02.03.2023 and pass appropriate orders in accordance with law.

5. With the above direction, the application stands disposed of.

6. File be consigned to record room.

7. Copy of the order be sent to the learned DRT.